



Notification Waiver Determination

EQT Fund Management – Melbourne Storm

Acquisition	EQT Fund Management S.à r.l. (EFMS), through Hosta Investment Holdings Pte. Limited (Hosta), a special purpose vehicle indirectly owned by investment fund BPEA Mid-Market Opportunities (BPEA MMO), proposes to acquire a majority of the shares in Holding M.S. Australia Pty Ltd and its subsidiaries (Melbourne Storm Rugby League Club Limited and Valimanda Pty Ltd), which own and operate the Melbourne Storm (together, Melbourne Storm), as described in the transaction documents provided as part of the application (the Acquisition). Hosta applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	10 September 2026

Parties to the Acquisition	Hosta is indirectly owned by BPEA MMO, a private investment fund that seeks to make investments in mid-market technology, services, healthcare and industrial technology sectors across the Asia Pacific region. BPEA MMO is part of the EQT group of investment funds and is controlled by EFMS, an alternative investment fund manager headquartered in Luxembourg. The target, Melbourne Storm, is a Victorian-based professional sporting club that competes in the National Rugby League (NRL), Australia's premier rugby league competition. Melbourne Storm has competed in the NRL since the competition's commencement in 1998. Through its participation in the NRL, Melbourne Storm supplies professional rugby league and related entertainment services, including the provision of a rugby league team to participate in the NRL competition, as well as associated sponsorship, membership, ticketing and merchandising activities. Melbourne Storm Rugby League Club Limited also owns 33.3% of Melbourne Sports Operations Pty Ltd (MSO). MSO is an incorporated joint venture which owns and operates AAMI Park stadium, located at 60 Olympic Park Boulevard, Melbourne, Victoria.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given there is no horizontal overlap or vertical relationship between the acquirer (or its connected entities) and Melbourne Storm in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act